



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
WATER RESOURCES DIVISION



PHILLIP D. ROOS
DIRECTOR

October 13, 2025

VIA EMAIL

Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: Follow-up to Violation Notice VN-012230 issued September 30, 2021
Local Limits for Toxic and Compatible Pollutants
Industrial Pretreatment Program (IPP) Substantial Modification Submittal
National Pollutant Discharge Elimination System (NPDES)
NPDES Permit No. MI0020257
Designated Name: Cadillac WWTP

The Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), received the City of Cadillac's Local Limits Evaluation submitted to MiEnviro on June 15, 2023; the program revision request submitted August 1, 2023; and subsequent revisions submitted through September 23, 2025. The WRD has conducted a review of the evaluation and determined it to be a substantial modification to your IPP, which is contained in NPDES Permit No. MI0020257 (Permit). The WRD finds the following proposed local limits modifications to be approvable.

Table 1: Approvable Compatible and Toxic Local Limits

Parameter	Proposed Maximum Allowable Industrial Loadings (MAIL), lbs/day	Current Monthly Average Local Limit, mg/L	Proposed Daily Maximum Local Limit, mg/L
5-day Biochemical Oxygen Demand (BOD5)	2,530		350
Total Suspended Solids (TSS)	6,228		850
Total Phosphorus	78		11
Ammonia Nitrogen	303		40
Arsenic, Total	0.021	0.026	0.003

Cadmium, Total	0.040	0.002	0.002 (daily maximum)
Chromium, Total	3.19	0.369	0.369 (daily maximum)
Copper, Total	0.290	0.099	0.040
Cyanide, Total		0.004	Remove
Cyanide, Available	0.211		0.004
Lead, Total	0.187	0.100	0.026
Mercury, Total		Non-detect*	Non-detect* (daily maximum)
Molybdenum, Total	0.235	0.118	0.033
Nickel, Total	0.536	0.185	0.075
Selenium, Total	0.092		0.013
Silver, Total	0.070	0.003	0.003 (daily maximum)
Zinc, Total	0.793	0.835	0.110
Phenol		1.236	No proposed change***
1,2-dichlorobenzene		0.008	Remove
Chloroform		0.090	Remove
Ethylbenzene		0.035	Remove
Lindane		0.0001	Remove
PCBs		Non-detect**	Remove
Styrene		0.021	Remove
Toluene		0.124	Remove
Xylene		0.066	Remove

*The total mercury local limit is non-detectable using the method EPA 245.1.

**The PCB local limit is non-detectable using the method EPA 608.

***No change is approved to the current phenol limit at this time; however, further evaluation of the phenol limit is required under the ongoing limits evaluation.

Staff review of the local limits submittal considered methodology and data provided by the permittee, to demonstrate that the limits will protect against the pass-through of pollutants and prevent interference with the publicly owned treatment works (POTW).

This review did not include an evaluation of the local limits for Total Beryllium or Benzidine as required by Part I, Section C.1.n. of the NPDES Permit. The review did include an evaluation of a local limit for Total Phenolics; however, this limit is not approvable. Further evaluation of local limits is required for Total Beryllium, Benzidine, and Phenol as pollutants of concern.

This review also did not include compliance with the worker health and safety requirements contained in the federal regulation 40 CFR 403.5(b)(7). For further information regarding worker health and safety requirements, you may wish to contact the Michigan Department of Licensing and Regulatory Affairs, General Industry Safety & Health Division at 517-322-1831, or refer to the U.S. Environmental Protection Agency's "Guidance to Protect POTW Workers from Fume Toxicity and Reactivity" (June 1992).

The following actions are required for final approval of the proposed local limits and maximum allowable industrial loads (MAIL). Please submit the following documents via MiEnviro for review by December 31, 2025. A schedule of compliance titled "Establish Enforceable Local Limits (IPP)" has been created in MiEnviro specifically for this purpose and can be found in the "Upcoming" tab on your MiEnviro Portal Dashboard.

1. Please submit an attorney certification as required by R 323.2307 of the Michigan Administrative Code for local limits and MAILs.
2. Once the approvable local limits have been adopted under the IPP legal authority, please submit a certified copy of all adopted legal authorities.

Should you require further information regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact Claire Lowe at 989-330-4639; LoweC9@Michigan.gov; or EGLE, GDO-WRD, P.O. Box 30458, Lansing, Michigan 48909-7958.

Sincerely,



Brian Jankowski, District Supervisor
Cadillac and Gaylord District Offices
Water Quality Unit
Water Resources Division

cc: Elaine Venema, Fleis & Vandenbrink
Patrick Miller, City of Cadillac
Claire Lowe, EGLE
Rodger Fain, EGLE